

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/16/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006194

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: CYPRESS INSURANCE
COMPANY

vs.

DEFENDANT: SHARON SILVER

NATURE OF PROCEEDINGS: 1) MOTION - COMPEL – DISCOVERY FACILITATOR PROGRAM
2) MOTION - COMPEL – DISCOVERY FACILITATOR PROGRAM
MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM

RULING

On August 28, 2026, Defendant Sharon Silver (“Silver”) filed a motion to compel mental examination of Plaintiff Nicholas Story (“Story”). Story has separately filed a motion to compel Silver to further responses to form interrogatories, set two, and supplemental interrogatory and production of documents under his supplemental request for production of documents. By way of ex parte proceedings, these matters were set for hearing on September 16, 2026.

Hearings on discovery motions must be set on or before the 15th day, before the initial trial date. (Code Civ. Proc. §2024.020.) In this case, the parties agreed to a shortened time schedule for September 16, 2026. The court finds these motions are timely.

Defendant’s Motion to Compel

Silver seeks to compel Plaintiff’s appearance at a mental examination with neuropsychologist Dr. Kimberly Miller on September 22, 2026. This date is set to occur after the close of discovery and is therefore, untimely, unless the court finds good cause. There are concerns that even if allowed, Dr. Miller’s report would not be ready in time for trial. Separately, Silver filed a motion to continue trial. However, that motion is currently set to be heard on November 25, 2026, which is after the trial date.

Plaintiff’s Motions to Compel

Plaintiff’s Separate Statement asserts that Form Interrogatory Set Two, No. 17.1 and Supplemental Interrogatory 16.4 , 16.5, and 16.6 are incomplete and that sub rosa documents are

missing. However, Defendant has asserted that there has been no required meet and confer and that supplemental responses have been filed. Additional documents have also been produced.

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/16/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006966

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: MICHAEL ESCOBAR

vs.

DEFENDANT: BRIDGEWAY BRIGHT,
INC.

NATURE OF PROCEEDINGS: MOTION – OTHER: PRELIMINARY APPROVAL

RULING

Plaintiff filed an unopposed motion for preliminary approval of a class action settlement of wage and hour claims, including claims under PAGA (Private Attorney General Act). After review of the motion papers, the Court finds that class certification is appropriate pursuant to *Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal. 4th 1004, 1012. The class size of 126 non-exempt employees meets the numerosity and ascertainability requirements. These employees would all have claims typical of the class which consist of wages, rest breaks, accurate wage statements, and failure to timely pay all of wages. Additionally, Plaintiff and counsel have adequately demonstrated they can represent the class.

Additionally, the settlement meets the standards for preliminary approval as the parties exchanged discovery and then attended mediation. The amount of settlement, \$400,000 appears to take into account the strengths and weakness in pursuing litigation in this case. The court also preliminarily approves the attorneys' fees of 1/3 the settlement amount and plaintiff's enhancement fee.

The parties shall appear to address any objections and to schedule a date for final approval.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.